



File No.: EXP202312720

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 23, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant indicates that they hired the services of the respondent lawyer and that this lawyer never informed them about the processing of their personal data or any personal data protection policy and never obtained their consent by any means to process their personal data.

As a result of this relationship, the complainant states that they only have the invoice issued by the lawyer, which does not contain any informative clause or text regarding personal data protection.

The complainant provides: a) a complaint letter to the AEPD, dated August 23, 2023; b) an invoice issued by the respondent lawyer dated June 5, 2023.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on September 22, 2023, as recorded in the acknowledgment of receipt in the file.

On September 23, 2023, a response letter from the respondent was received by the Agency in which, in summary, it stated that:

- It does not maintain any computerized file with the personal data of its clients, nor profiles.
- All information is stored on a hard drive within a folder named after the clients. This hard drive is password-protected, with the respondent being the only person with access to it.
- The processing carried out by a lawyer practicing individually is not considered large-scale processing, therefore individual practicing lawyers are not required to appoint a Data Protection Officer.
- The processing carried out by a lawyer practicing individually is not considered large-scale processing, therefore individual practicing lawyers are not required to conduct a Data Protection Impact Assessment.
- It refers to professional secrecy in the practice of law.

Prior to this complaint, the complainant had submitted a letter to this Agency on August 2, 2023, reporting a breach regarding the duty of information on the website www.abogadoslowcostag.com.

According to the complainant, there is a contact form on the website that would allow for data collection, but it lacks a privacy policy or legal notice, thus failing to specify the purposes of the processing or identify the data controller or their address.

In the allegations of the respondent, dated September 29, 2023, it states that following the receipt of the forwarding letter, they have improved the subscription tab on the website and also include more information regarding the Data Protection Law.

On September 29, 2023, these proceedings were concluded with the sending of a reminder of obligations to the respondent along with the Annex "Decalogue for adapting internet privacy policies to the GDPR," and on that same date, a letter was sent to the complainant to inform them that the respondent has been informed of the legal requirements necessary to comply with the duty to inform users.

Simultaneously, and as previously indicated, on August 23, the complainant submitted the complaint that gives rise to this initiation agreement for the warning procedure.

THIRD: On November 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On March 20, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in the LPACAP, was acknowledged on March 20, 2024, as recorded in the acknowledgment of receipt in the file.

SIXTH: On March 21, 2024, a letter of allegations from the respondent was received in which, in summary, the following considerations are made:

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- The respondent believes that it has not infringed the Data Protection Law, although the respondent had not been provided with the written details of the Data Protection Law.
- It claims to comply with the Deontological Code of the Legal Profession, and therefore, by virtue of professional secrecy, no information from the complainant has been leaked.
- In order to comply with current regulations, and following the recommendations of the "Decalogue for adapting to the GDPR of privacy policies on the internet," it states that it has improved its communications on the blog and in the footer of emails.
- Furthermore, it informs that it has proceeded to delete all files and data it had regarding the complainant.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The complainant contracted the services of the respondent to represent them in the pending mortgage enforcement procedure.

SECOND: Throughout the contractual relationship, the complainant has not been informed about the processing of their personal data or any data protection policy.

THIRD: As the only documentation, the complainant has the invoice issued by the respondent, which represents the conclusion of the mortgage enforcement procedure and therefore of the contractual relationship. The invoice does not contain any informative clause regarding the protection of personal data.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Response to Allegations

The respondent believes that it has not infringed or committed any violation based on the Data

Protection Law, as there has been no leakage of information from the complainant.

The contractual relationship maintained with the respondent has been an opposition to a mortgage enforcement, which has been satisfactorily archived by a settlement agreement, and it states that it has proceeded to delete all files and data it had regarding the complainant.

The truth is that the respondent, throughout the entire contractual relationship, has not proceeded to inform about the processing of personal data, nor has it included any informative clause regarding the processing of such data in the invoice issued to the complainant, just as there was no reference on its website regarding privacy policy.

For all these reasons, this Agency considers the allegations presented by the respondent to be dismissed.

In order to comply with current regulations, and following the recommendations of the Guide for fulfilling the duty to inform that the Spanish Agency for Data Protection makes available to data controllers, the respondent states that it has improved its communications on the blog and in the footer of emails.

In this regard, this Agency positively values the adoption of new measures that lead to greater security concerning the processing of personal data and that may prevent, in the future, incidents like the one that is the subject of this procedure.

III

Preliminary Issues

In this case, there is evidence of the processing of personal data by the respondent in its business activity, as established in Article 4.2 of the GDPR:

"processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use,

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communication by transmission, broadcasting, or any other form of enabling access, comparison, or interconnection, limitation, suppression, or destruction.

The respondent carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

"data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States."

IV

Unfulfilled Obligation

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, according to which:

"1. When personal data relating to a data subject is obtained from the data subject, the controller shall provide the data subject with all the information specified below at the time of obtaining the data:

- a) the identity and contact details of the controller and, where applicable, of the controller's representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where

they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

In this specific case, the respondent did not proceed to inform the claimant about any of the aspects listed in the previous article regarding the processing of their personal data.

The claimant only has the invoice issued by the respondent's lawyer, which does not contain any informative clause or legal text regarding the protection of personal data.

V

Classification and Qualification of the Infraction

In accordance with the evidence available at this moment in the resolution of the warning procedure, it is considered that the respondent has processed personal data of the claimant without adhering to the stipulations of Article 13 of the GDPR, transcribed in the previous section.

Article 83.5(b) provides that "violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) (...)

b) the rights of data subjects under Articles 12 to 22;" (...)

For the purposes of the limitation period for infringements, Article 72.1(h) of the LOPDGDD classifies as very serious "The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law."

The limitation period for very serious infringements provided for in the LOPDGDD is three years.

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VI

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in section 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Initiation of the procedure and

duration," states in its third section that:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case." In the present case, given the circumstances surrounding this procedure, it is deemed appropriate to issue a warning for the infringement of the violated article.

VII

Adoption of measures

In accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe...", the controller is required to demonstrate to this Agency, within one month:

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- that it has included the informative clause or legal text regarding the processing of data in all forms in which it collects personal data, as well as in the invoices it issues in the course of its activity.
- that it has published the corresponding privacy policy on its website and that such privacy policy complies with the legally established requirements.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Data Protection Agency

RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to demonstrate to this Agency:

- that it has included the informative clause or legal text regarding the processing of data in all forms in which it collects personal data, as well as in the invoices it issues in the course of its activity.
- that it has published the corresponding privacy policy on its website and that such privacy policy complies with the legally established requirements.

THIRD: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be suspended provisionally if the

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The interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

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Mar España Martí

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